

May 11, 2026 Truckee Civil Law & Motion Tentative Rulings

1. CL0003437 Capital One, N.A. successor by merger to Discover Bank vs. Michelle Mattingly

No appearances required. On the Court's own motion and in light of the Declaration filed by counsel for Plaintiff, the Court continues the OSC re Dismissal to July 13, 2026 at 1:30 p.m. in Dept. A. Plaintiff shall file a proof of service, an application to serve by publication (if deemed appropriate), or a request for dismissal of defendant in advance of the continued order to show cause date. The Court notes, the declaration of non-service filed on April 8, 2026 fails to set forth reasonable efforts in and by itself; however, the declaration of counsel evidences Plaintiff is and has been making diligent efforts to effectuate service of process.

2. CL0003511 Barclays Bank Delaware vs. Owen Manville

Appearance required by Plaintiff to show cause as to why this case should not be dismissed and/or Plaintiff sanctioned for failure to serve the Summons and Complaint on Defendants via some approved method after the Declaration of Non-Service was filed on March 2, 2026, and the Court continued the prior appearance date on the OSC. Absent good cause being shown, the Court intends to set the matter for dismissal pursuant to CCP section 583.420.

3. CL0003535 American Express National Bank vs. Heidi Petyo et al

No appearances required. In light of the proofs of service of the Summons and Complaint filed on March 25, 2026, the OSC re Dismissal is vacated.

4. CL0003630 LVNV Funding LLC vs. Salvador Magana

Appearance required by Plaintiff to show cause as to why this case should not be dismissed and/or Plaintiff sanctioned for failure to serve the Summons and Complaint on Defendant despite the fact this case has been pending for almost five (5) months. Absent good cause being shown, the Court intends, on its own motion, to set the matter for dismissal pursuant to CCP section 583.420 and vacate the trial date set for August 21, 2026 at 11:00 a.m.

5. CU0000657 Daniel Botwinis vs. Patrice Fleming et al

Defendants Patrice Fleming and Fleming Family Trust's ("Fleming Defendants" or "Defendants") motion for summary adjudication as to the second cause of action for intentional tort (battery) as well as to the prayer for punitive damages seeking punitive damages against the Fleming Defendants is GRANTED in its entirety.

Request for Judicial Notice

Defendants' unopposed request for judicial notice is granted.

Rulings on Objections